

Court No. - 34

Case :- WRIT - C No. - 67413 of 2012

Petitioner :- Riyasat Hussain

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Ram Prakash Singh

Respondent Counsel :- C.S.C.,Dr. Suman Yadav

Hon'ble Sunil Ambwani,J.

Hon'ble Pankaj Naqvi,J.

We have heard Shri Ram Prakash Singh, learned counsel appearing for the petitioner. Learned Standing Counsel appears for the respondent nos. 1 and 3. Dr. Suman Yadav appears for respondent no.2.

It is stated that the petitioner had filed a writ petition in the year 2006 challenging the correctness of the electricity bill, which was disposed of on 26.5.2006 with direction to file a representation. The petitioner has made a representation, which has not been decided and that the old dues are still reflected in the electricity bill.

Now by this writ petition, the petitioner has challenged the correctness of the electricity bill dated 28.8.2010, which also requires the payment of arrears.

The petitioner has not availed the remedies under Para 6.5 of the U.P. Electricity Supply Code, 2005 to raise objections to the correctness of the bill and seek redressal from the concerned Executive Engineer.

This writ petition, filed after two years of the receipt of disputed bill, which is sought to be corrected, is barred by unexplained laches, which have not been explained adequately in the writ petition.

The writ petition is dismissed both on the grounds of alternative remedy as well as unexplained delay in invoking the jurisdiction of the court.

Order Date :- 21.12.2012

RKP